

SIPA WORKSHOP SERIES

Brazil AI Landscape

Country Briefing

Prepared by: **Sanjana Aravamudhan**

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OVERVIEW

Brazil represents Latin America's largest economy and is positioning itself as a regional leader in artificial intelligence development. With a population exceeding 215 million and an AI market projected to grow from \$3 billion in 2023 to \$11.6 billion by 2030, the country presents both tremendous opportunity and complex policy challenges.

215M+ Population	\$3B → \$11.6B AI Market 2023–2030
BRL 23B (~\$4B) AI Plan 2024–2028 Budget	#1 Largest Economy in Latin America

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Executive Summary

Brazil represents Latin America's largest economy and is positioning itself as a regional leader in artificial intelligence development. With a population exceeding 215 million and an AI market projected to grow from \$3 billion in 2023 to \$11.6 billion by 2030, the country presents both tremendous opportunity and complex policy challenges. This briefing provides SIPA workshop team members with essential background on Brazil's governmental structure, AI strategy, legislative landscape, and opportunities for philanthropic intervention.

KEY TAKEAWAY

The 2025–2026 timeframe is strategically optimal for philanthropic engagement: landmark AI legislation (PL 2338/2023) is moving through the Chamber of Deputies, the Lula administration is pursuing major policy initiatives before the 2026 elections, and Brazil's AI investment plan commits BRL 23 billion over four years.

Government & Political Context

Brazil operates as a federal presidential constitutional republic under the 1988 Constitution, with power divided among executive, legislative, and judicial branches. President Luiz Inácio Lula da Silva, inaugurated in January 2025, leads an administration focused on social inclusion and technological sovereignty.

Political Dynamics

Brazil's multi-party system requires coalition-building to pass legislation, making policy implementation complex but creating opportunities for civil society engagement. The year 2025 is politically critical as a pre-election year before the 2026 general elections.

Branches of Government

- Executive: President + ~24 Ministries; Lula re-inaugurated January 2025; ~48,000 presidential appointments
- Legislature: Bicameral National Congress — Federal Senate (81 senators) + Chamber of Deputies (513 deputies)
- Judiciary: Supreme Federal Court (STF, 11 justices) + Superior Court of Justice (STJ, 33 judges)

Key Government Agencies for AI

- MCTI (Ministry of Science, Technology and Innovation) — primary AI strategy coordinator, led by Minister Luciana Santos
- ANPD (National Data Protection Authority) — enforces LGPD; imposed BRL 98M+ in fines 2023–2025
- ANATEL — regulates telecommunications infrastructure
- CGI.br — coordinates internet policy; oversees Marco Civil implementation
- BACEN — issues AI regulations for financial services

ELECTORAL CONTEXT

The next general elections are in 2026, making 2025 critical for major policy action. The Lula administration aims to advance AI legislation and other priorities before political attention shifts to campaigns.

AI Strategy & Investment

Brazil has launched ambitious AI initiatives including the Brazilian National AI Strategy (EBIA, 2021) and the Brazilian AI Plan 2024–2028, which commits BRL 23 billion (approximately \$4 billion) over four years.

Brazilian AI Plan 2024–2028: "AI for the Good of All"

- BRL 14 billion for business projects — AI value chain development, data centers, startup and MSME support
- BRL 5 billion for infrastructure — 42 projects including supercomputer upgrades and data center energy
- Upgrade Santos Dumont supercomputer to rank among the world's top five
- BRL 1.1 billion investment to develop a Portuguese-language large language model
- 500 million reais for sustainable energy infrastructure to power data centers
- Six applied AI centers in agriculture, smart cities, Industry 4.0, and health

EBIA Core Principles (2021)

- Inclusive growth, sustainable development and well-being
- Human-centered values and equity
- Transparency and explainability
- Robustness, security and protection
- Accountability

BRAZIL'S AI STRENGTHS

Brazil hosts the majority of Latin America's AI startups, is the largest recipient of private AI investment in the region, and has the world's second-highest rate of daily internet use. 11 AI competence centers have been established, with strong fintech and e-commerce ecosystems.

Legislative Framework

Brazil's AI regulation develops through multiple legal layers, creating a comprehensive but complex regulatory landscape.

Layer 1: Marco Civil da Internet (2014)

Brazil's foundational internet governance law — sometimes called its "Internet Constitution" — established principles of net neutrality, freedom of expression, privacy, and universality of access. Notably, it requires judicial orders for content removal, protecting free speech through due process.

Layer 2: LGPD — General Data Protection Law (2020)

Modeled on the EU's GDPR, the LGPD applies to any entity processing personal data of individuals in Brazil, with extraterritorial reach. Key features include 10 legal bases for data processing, comprehensive individual rights, and ANPD enforcement powers including fines up to 2% of annual Brazilian revenue (max BRL 50M per violation).

LANDMARK ENFORCEMENT

In July 2024, ANPD suspended Meta's privacy policy for using Brazilian users' data from Facebook, Instagram, and Messenger to train AI systems without adequate disclosure or opt-out. Meta faced potential fines of BRL 50,000 per day per violation. This signals ANPD's willingness to aggressively enforce against even the largest technology companies.

Layer 3: PL 2338/2023 — Pending AI Legislation

Senate-approved in December 2024 and now under review in the Chamber of Deputies, this bill represents Brazil's comprehensive AI regulation framework.

- Adopts a risk-based approach similar to the EU AI Act
- Bans autonomous weapons and predictive profiling technologies
- Restricts facial recognition in public areas to specific cases
- Requires transparency, fairness, and understandability for AI systems
- Controversial copyright provisions: disclosure of training data + creator opt-out rights
- Violations: fines up to BRL 50M or 2% of annual revenue
- 180-day phase-in for generative AI / copyright provisions; 2-year phase-in for other provisions

LEGISLATIVE TIMELINE

PL 2338/2023 was forwarded to the Chamber of Deputies on March 17, 2025. A special committee was established April 29, 2025. The bill is expected to potentially be enacted during 2025, though the copyright provisions remain contentious and may be amended.

Critical Challenges

1. Digital Divide

Persistent disparities between urban/rural areas, wealthy and poor regions, and gender-based inequalities in STEM education. Despite nearly \$28 billion invested in telecommunications since 2020, internet access directly correlates with income inequality.

- Wealthy regions like Santa Catarina outperform some OECD countries in connectivity
- Poorest regions — Acre, Amazonas, Maranhão — lag significantly
- Wealthiest 20% of households are twice as likely to complete secondary education as the poorest 20%

2. Infrastructure & Capacity Gaps

- Brazil ranks 28/100 in cybersecurity (7th of 75 surveyed countries)
- Trust in government websites is only 48%, vs. 86% in tech sector
- Global AI talent gap of 50% impacts Brazil particularly hard
- Digital opportunities concentrated in major metropolitan regions

3. Data & Bias Concerns

AI systems trained predominantly on Global North datasets risk perpetuating biases when deployed in Brazil's diverse population. Healthcare AI trained primarily on Caucasian patients may perform poorly on Brazil's phenotypically diverse population. Indigenous languages face marginalization in AI models.

4. Policy Implementation Challenges

- Fragmentation across multiple agencies with limited cross-ministerial coordination
- Budget constraints for MCTI and related agencies
- Need for sustained political commitment beyond electoral cycles
- Academic analyses cite EBIA's insufficient stakeholder engagement in formulation

Strategic Opportunities for Philanthropy

Several critical gaps present opportunities for BRAVA Foundation's strategic intervention aligned with its mission and 25-year track record.

Focus Area	Description
Bridging the Digital Divide	Connectivity initiatives, digital literacy programs, and community technology centers in underserved regions
Policy Implementation Capacity	Evidence-based policymaking support, pilot projects testing EBIA strategies, monitoring and evaluation systems
Inclusive AI Development	Diverse dataset creation, AI education for underrepresented groups, ethical AI research
Civil Society Capacity	Strengthen organizations working on AI governance; create platforms for diverse voices to influence policy
Youth & Education	Digital skills development, teacher training in AI literacy, pathways for underrepresented groups
Policy Research & Advocacy	Support think tanks, fund advocacy for ethical AI frameworks, evidence-to-policy mechanisms
Regional Collaboration	Latin American AI networks, comparative policy research, South-South cooperation
Stakeholder Engagement	Participatory mechanisms for AI policy, research on AI impacts on marginalized communities

Key Stakeholder Landscape

Effective engagement requires understanding diverse stakeholders across government, academia, private sector, civil society, and international organizations. BRAVA's 25-year track record and existing networks position it well for collaboration across all groups.

Government Actors

- MCTI and affiliated research centers — leads AI strategy and cross-agency coordination
- ANPD leadership and technical staff — data protection enforcement and AI regulation
- Ministry of Education — AI in education initiatives and youth programs
- State-level science and technology secretariats (São Paulo, Rio de Janeiro)
- Legislative staff/members of the special Chamber committee reviewing PL 2338/2023

Academic & Research Institutions

- Center for AI (C4AI), University of São Paulo; UNICAMP
- 11 AI competence centers established under EBIA
- EMBRAPA's CIMATEC Lab

Private Sector

- Brazilian tech companies and AI startups
- Multinationals operating in Brazil (Meta, Google, Microsoft)
- Industry associations, accelerators, and venture capital firms

Civil Society Organizations

- Data Privacy Brasil — policy advocacy and public education on digital rights
- Coalizão Direitos na Rede — digital rights coalition; hosted March 2025 AI bill hearings
- IDEC (Instituto Brasileiro de Defesa do Consumidor) — consumer protection
- Labor unions concerned about AI's impact on employment

International Organizations

- OECD — AI Policy Observatory benchmarking
- UNESCO, UNDP — digital development and governance programs
- World Bank, Inter-American Development Bank — technology and development funding

Timing & Contextual Factors

WHY NOW: 2025–2026 WINDOW

Legislative action on AI regulation is expected in 2025 before political attention shifts to the 2026 elections. Field research planned for January/March 2026 can capture key stakeholders during optimal engagement periods. BRAVA's network, logistical support, and Portuguese language capacity are essential assets.

Field Visit Timing

- December 2025–January 2026: Southern Hemisphere summer; some agencies on reduced schedules, but more informal access possible. Avoid late December due to holidays.
- March 2026: Potentially better for intensive stakeholder engagement as government and academic calendars return to full operation.

Cultural & Operational Considerations

- Brazilian bureaucracy is hierarchical and relationship-driven; warm introductions through trusted contacts are more effective than cold outreach
- Personal relationships are highly valued; trust-building takes time and multiple meetings
- Portuguese language capacity within the team is highly valuable for reviewing documents and building rapport
- Academic partnerships provide credibility and access to research, expertise, and cross-sector networks
- Safety planning: BRAVA's local knowledge is essential for travel in major cities

Geographic Focus

- Brasília — federal ministries, agencies, Congress; key government stakeholders including MCTI and ANPD
- São Paulo — largest tech ecosystem in Latin America; major universities, startups, civil society
- Rio de Janeiro — tech companies, research centers, civil society; important for equity perspectives
- Northeast/North regions — underrepresented in AI initiatives; critical for understanding digital divide realities

Priority Research Questions

The team should investigate the following key questions to build comprehensive understanding and identify the highest-impact intervention areas for BRAVA Foundation.

BRAVA's Strategic Positioning

How can BRAVA leverage its 25-year track record to establish credibility in the AI space? What unique contributions can a Brazilian nonprofit make that government, academia, or international organizations cannot?

Implementation Gaps

What are the most significant gaps between AI policy ambitions (EBIA, 2024–2028 Plan) and implementation realities? Are challenges primarily resource, coordination, political will, or technical capacity?

Comparative Learning

Which Brazilian foundations and civil society organizations are most effectively addressing AI ethics and equity? Where are opportunities for collaboration versus duplication?

Equity Barriers

What are the primary bottlenecks preventing equitable AI development and deployment? What leverage points exist for interventions?

Governance Models

What models of AI governance appear most promising for Brazil's context? What adaptations of EU/US/Singapore models might work best?

Civil Society Voice

What are the actual mechanisms for civil society input into AI policy, and how effective are they? Who is currently excluded from policy conversations?

Regional Leadership

What role can Brazil play in shaping Latin American and Global South perspectives on AI governance? What platforms could facilitate knowledge sharing?

APPENDICES

Appendix I: Government Structure & Political Context

Brazil operates as a federal presidential constitutional republic under the Constitution of 1988. The country is divided into 26 states plus one federal district (Brasília), with significant autonomy granted to state and municipal governments.

Executive Branch

President Luiz Inácio Lula da Silva was inaugurated January 20, 2025, marking his return to power after serving 2003–2010. The President appoints approximately 24 ministries plus cabinet-level offices and can issue provisional measures in urgent situations. Approximately 48,000 positions are presidential appointments, with Senate approval required for key positions. The next general elections will be held in 2026.

National Congress

- Federal Senate: 81 senators (three per state), elected for eight-year terms
- Chamber of Deputies: 513 deputies elected proportionally for four-year terms
- Brazil's "coalition presidentialism" requires the executive to build diverse multi-party coalitions to pass legislation

Judicial Branch

- Supreme Federal Court (STF): 11 justices handling constitutional matters, appointed by the President until age 70
- Superior Court of Justice (STJ): 33 judges for non-constitutional matters
- Five Regional Federal Courts handle appeals across geographic regions

Brazil's democracy is rated as "flawed" by the Economist Intelligence Unit, reflecting ongoing challenges with corruption, inequality, and institutional capacity.

Appendix II: Brazilian AI Landscape

EBIA — Brazilian National AI Strategy (2021)

Brazil's first comprehensive AI strategy, built on five core principles (see above) and aligned with OECD AI Principles. EBIA identifies nine strategic axes: transversal themes (legislation, governance, international cooperation, workforce, R&D) and vertical sector themes (agriculture, health, Industry 4.0, smart cities, public security, justice). EBIA defines 73 strategic actions.

AI Plan 2024–2028 Budget Breakdown

Initiative	Allocation
Business Projects (AI value chain, data centers, startups)	BRL 14 billion
Infrastructure & Development (42 projects)	BRL 5 billion
Portuguese-language LLM	BRL 1.1 billion
Sustainable energy for data centers	BRL 500 million

Key Challenges

- Digital divide: stark disparities between urban/rural, wealthy/poor, and gender-based inequalities
- Energy demands for AI development not yet fully addressed
- Low cybersecurity rankings; limited public trust in government digital services
- AI systems trained on Global North data risk bias for Brazil's diverse population
- Fragmented AI policy across agencies; limited cross-ministerial coordination

Appendix III: Legislative Landscape

Marco Civil da Internet (2014)

Brazil's foundational internet governance framework, often called its "Internet Constitution." Codified ten principles including net neutrality, freedom of expression, privacy, security, and universality of access. Requires judicial orders for content removal — a deliberate choice distinguishing Brazil from simple "notice and takedown" systems. Tim Berners-Lee praised it as "a very good example of how governments can play a positive role in advancing web rights."

LGPD — General Personal Data Protection Law (2020)

Modeled on EU GDPR with important differences, the LGPD applies to any entity processing personal data of individuals in Brazil (extraterritorial). Establishes 10 legal bases for processing, comprehensive individual rights, and ANPD enforcement powers. Since gaining sanctioning powers in August 2021, ANPD has imposed over BRL 98 million in fines.

- First sanction (2023): Telekall Infoservice — illegal data processing, no Data Protection Officer
- INSS (2022): national social security data breach
- Meta (July 2024): used Brazilian users' data to train AI without adequate disclosure or opt-out mechanisms — BRL 50,000/day potential fines
- ANPD Priorities 2025–2026: data subject rights, DPIAs, minors' data, biometric data, AI regulation, high-risk processing

PL 2338/2023 — AI Regulation Bill (Pending)

Introduced by Senator Rodrigo Pacheco in May 2023 following a Commission of Jurists process with extensive public consultation. Senate approved by consensus December 10, 2024. Now under review by a special Chamber of Deputies committee established April 29, 2025.

COPYRIGHT CONTROVERSY

The bill's most contentious provisions require AI developers to disclose which copyright-protected materials were used in training data, and give creators the right to prohibit their works from being used. Creative communities (UBC, CISAC) celebrated Senate approval; technology companies worry these provisions will be weakened in the Chamber. This is a critical flashpoint to monitor.

Appendix IV: Key AI Policy Debates, Challenges & Opportunities

Fundamental Policy Tensions

- Innovation vs. regulation: competitive AI markets vs. ethical AI development and protection of vulnerable populations
- Technological sovereignty: reducing dependence on foreign AI (U.S., China) vs. leveraging international expertise
- Social inclusion vs. economic efficiency: AI job displacement vs. new opportunities requiring digital skills
- Copyright and IP: creator protections vs. technology company preferences and international competitiveness
- Platform regulation: content moderation and privacy vs. free expression
- Brazil–U.S. relations: Brazilian data/copyright policies may create friction with dominant U.S. tech companies

Detailed Opportunity Analysis

- Policy Integration: Fund cross-agency convenings, research on coordination mechanisms, integrated AI governance pilot programs
- Equity & Access: Connectivity for underserved regions, targeted digital literacy for vulnerable populations, community tech centers, equitable AI deployment research
- Implementation Capacity: Pilot EBIA strategies, evidence-based policymaking support, monitoring and evaluation investment
- Stakeholder Engagement: Strengthen civil society on AI governance, participatory policy mechanisms, marginalized community research
- International Positioning: Latin American AI networks, comparative policy research, South-South cooperation facilitation
- Youth & Education: Digital skills, teacher AI literacy training, equity in AI education research, pathways for underrepresented groups
- Policy Research: Support think tanks, ethical AI advocacy, evidence-to-policy mechanisms

Appendix V: Stakeholder Landscape & Engagement Framework

The SIPA team should plan to engage with diverse stakeholders across sectors to build comprehensive understanding and identify collaboration opportunities.

Government

MCTI and affiliated research centers; ANPD leadership and technical staff; Ministry of Education officials working on AI in education; Ministry of Justice; state-level science and technology secretariats in São Paulo and Rio de Janeiro; legislative contacts on the special Chamber committee reviewing PL 2338/2023.

Academic & Research

C4AI (University of São Paulo); UNICAMP; EMBRAPA's CIMATEC Lab; the 11 AI competence centers established under EBIA. These institutions provide research findings, student/faculty expertise, and partnerships for pilot projects.

Private Sector

Brazilian tech companies developing AI solutions; multinational technology companies (Meta, Google, Microsoft); startup ecosystem representatives including accelerators and VCs; industry associations.

Civil Society

Data Privacy Brasil; Coalizão Direitos na Rede (hosted March 2025 AI bill hearings); IDEC (consumer rights); labor unions concerned about AI and employment; community organizations working on digital inclusion.

International Organizations

OECD (AI Policy Observatory); UNESCO and UNDP (digital development and governance); OAS and MERCOSUR (regional cooperation); World Bank and Inter-American Development Bank (technology development funding).

Philanthropy & Impact Investment

Brazilian foundations working on technology and social impact; international foundations with Brazil programs; impact investors in tech. Mapping this landscape will help BRAVA position strategically and avoid duplication.

Appendix VI: Contextual Factors & Research Framework

Timing Considerations

- 2025: Critical policy window before 2026 elections; National Congress operates in two ~4.5-month sessions
- December 2025–January 2026: Southern Hemisphere summer; reduced government schedules; favorable for informal access
- March 2026: Better for intensive stakeholder engagement; full academic and government calendars
- Work with BRAVA to identify optimal windows based on legislative calendars and priority stakeholder availability

Language & Communication

- Portuguese is the official language; most technical/policy documents are only in Portuguese
- Having a Portuguese-speaking team member is highly valuable for document review, interviews, and rapport
- Translation support needed; be aware technical AI terminology may differ between Portuguese and English
- Building relationships with bilingual researchers as cultural and linguistic bridges enhances team effectiveness

Geographic Priorities

- Brasília: Federal ministries, agencies, Congress — key government stakeholders (MCTI, ANPD)
- São Paulo: Largest Latin American tech ecosystem; major universities, startups, civil society
- Rio de Janeiro: Tech companies, research centers, important equity perspectives
- Northeast & North: Critical for understanding digital divide realities; underrepresented in AI initiatives

Recommended Research Questions

- BRAVA Positioning: How can BRAVA leverage its 25-year track record? What unique value can a Brazilian nonprofit add?
- Implementation Gaps: Where do policy ambitions diverge from ground realities? What are the root causes?
- Comparative Learning: Which organizations most effectively address AI ethics and equity? What can be learned?
- Regional Context: How does Brazil compare to Mexico, Argentina, Chile, Colombia? Where can Brazil lead?
- Equity Barriers: What bottlenecks prevent equitable AI development? What are the leverage points?

- Philanthropic Value-Add: Where is government action insufficient or constrained? How can philanthropy add flexibility and risk-taking?
- Governance Models: What AI governance models — EU, U.S., Singapore — could work best in the Brazilian context?
- Civil Society Voice: Who is excluded from AI policy conversations? How can marginalized voices be amplified?
- Youth Perspectives: How do young Brazilians — across regions and socioeconomic contexts — experience AI differently?
- Regional Leadership: What platforms could enable Brazil to share lessons with the Global South?

Appendix VII: Key Acronyms & Terms

Acronym	Full Name
ANATEL	National Telecommunications Agency (Agência Nacional de Telecomunicações)
ANPD	National Data Protection Authority (Autoridade Nacional de Proteção de Dados)
BACEN	Central Bank of Brazil (Banco Central do Brasil)
C4AI	Center for AI, University of São Paulo
CGI.br	Brazil's Internet Management Committee (Comitê Gestor da Internet no Brasil)
CISAC	International Confederation of Societies of Authors and Composers
CTIA	Internal Temporary Committee on AI in Brazil (Comissão Temporária Interna sobre IA no Brasil)
EBIA	Brazilian National AI Strategy (Estratégia Brasileira de Inteligência Artificial)
EMBRAPII	Brazilian Agency for Industrial Research and Innovation
IDEC	Brazilian Institute for Consumer Defense (Instituto Brasileiro de Defesa do Consumidor)
INSS	National Social Security Institute (Instituto Nacional do Seguro Social)
LGPD	General Personal Data Protection Law (Lei Geral de Proteção de Dados)
Marco Civil / MCI	Civil Rights Framework for the Internet (Marco Civil da Internet)
MCTI	Ministry of Science, Technology and Innovation
MEC	Ministry of Education (Ministério da Educação)
MERCOSUR	Southern Common Market (Mercado Comum do Sul)
OAS	Organization of American States
PL	Bill/Project of Law (Projeto de Lei)
PT	Workers' Party (Partido dos Trabalhadores)
STF	Supreme Federal Court (Supremo Tribunal Federal)
STJ	Superior Court of Justice (Superior Tribunal de Justiça)
UBC	Brazilian Union of Composers (União Brasileira de Compositores)
UNESCO	United Nations Educational, Scientific and Cultural Organization
UNDP	United Nations Development Programme
UNICAMP	University of Campinas (Universidade Estadual de Campinas)
USP	University of São Paulo (Universidade de São Paulo)

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Center for AI (C4AI), University of São Paulo. c4ai.inova.usp.br

Civil Society Organizations

Data Privacy Brasil: dataprivacy.com.br

Coalizão Direitos na Rede: direitosnarede.org.br

IDEC (Instituto Brasileiro de Defesa do Consumidor): idec.org.br

União Brasileira de Compositores (UBC): ubc.org.br

CISAC (International Confederation of Societies of Authors and Composers): cisac.org